



U.S. Customs and Border Protection

PUBLIC VERSION DOCUMENT

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Clark Core Services, LLC
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Re: Notice of Initiation of Investigations and Interim Measures - EAPA Cons. Case 8294

Dear Counsel and/or Representatives for the Above-Referenced Entities:

This letter is to inform you that U.S. Customs and Border Protection (CBP) has commenced a formal investigation under Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the Enforce and Protect Act (EAPA), against importer Clark Core Services (Clark Core). CBP is investigating whether Clark Core evaded the antidumping duty (AD) order A-570-170, and countervailing duty (CVD) order C-570-171, covering disposable aluminum containers, pans, trays, and lids (disposable aluminum containers)¹, by entering into the United States Chinese-origin disposable aluminum containers transshipped through Cambodia to avoid paying duties per the *Orders*.² Based on a review of available information, CBP has determined that there is reasonable suspicion of evasion of AD/CVD duties by Clark Core for Chinese-origin disposable aluminum containers; therefore, CBP has imposed the interim measures outlined below.

Period of Investigation

Pursuant to 19 C.F.R. § 165.2, entries covered by an EAPA investigation are “those entries of allegedly covered merchandise made within one year before the receipt of an allegation[.]” Entry is defined as an “entry, or withdrawal from warehouse for consumption, of merchandise into the customs territory of the United States.”³ CBP acknowledged receipt of a properly filed allegation against Clark Core on March 3, 2026.⁴ Therefore, the entries covered by this investigation are those entered for consumption, or withdrawn from warehouse for consumption, from March 3, 2025, through the pendency of this investigation.⁵

¹ See *Disposable Aluminum Containers, Pans, Trays, and Lids from the People’s Republic of China; Antidumping and Countervailing Duty Orders*, 88 Fed Reg 19467 (May 8, 2025) (*Orders*).

² See CBP’s Memorandum, “Initiation of Investigation for EAPA Case Number 8294,” dated March 6, 2026 (Initiation Memorandum).

³ See 19 U.S.C. § 1517(a)(4); see also 19 C.F.R. § 165.1.

⁴ See CBP’s Email, “EAPA 8294-Receipt of Allegation,” dated March 3, 2026.

⁵ See 19 C.F.R. § 165.2.

Scope of the *Orders*

The merchandise covered by the *Orders* is Chinese-origin disposable aluminum containers, pans, trays, and lids produced primarily from flat-rolled aluminum regardless of shape or size and whether or not wrinkled or smooth.⁶ As defined by the *Orders*, “{t}he term ‘disposable’ is used to identify an aluminum article that is designed to be used once, or for a limited number of times, and then recycled or otherwise disposed.”⁷

“‘Containers, pans, and ‘trays’” are receptacles for holding goods.” Whereas “{t}he subject disposable aluminum lids are {those} intended to be used in combination with disposable containers produced from aluminum or other materials (*e.g.*, paper or plastic).”⁸ “Where a disposable aluminum lid is imported with a non-aluminum container, only the disposable aluminum lid is included in the scope.”⁹

Disposable, Chinese-origin “aluminum containers, pans, trays, and lids are also included within the scope regardless of whether the surface has been embossed, printed, coated (including with a non-stick substance), or decorated, and regardless of the style of the edges.”¹⁰ “The inclusion of a nonaluminum lid or dome sold or packaged with an otherwise in-scope article does not remove the article from the scope, however, only the disposable aluminum container, pan, tray, and lid is covered by the scope definition.”¹¹

While “{d}isposable aluminum containers, pans, trays, and lids are typically used in food-related applications, including but not limited to food preparation, packaging, baking, barbequing, reheating, takeout, or storage, the merchandise is included in the scope of the *Orders* regardless of the end use.”¹²

Disposable aluminum casks, drums, cans, boxes, and similar containers (including disposable aluminum cups and bottles) properly classified under Harmonized Tariff Schedule of the United States (HTSUS) subheading 7612.90 are excluded from the scope.¹³ “However, aluminum containers, pans, trays, and lids that would otherwise be covered are not excluded based solely on the fact that they are being classified under HTSUS subheading 7612.90.5000 due to the thickness of aluminum being less than 0.04 millimeters (mm) or greater than 0.22 mm.”¹⁴

“The flat-rolled aluminum used to produce the subject articles may be made to ASTM specifications ASTM B479 or ASTM B209-14 but can also be made to other specifications.”¹⁵

⁶ *Orders*, at Appendix.

⁷ *Id.*

⁸ *Id.*

⁹ *Id.*

¹⁰ *Id.*

¹¹ *Id.*

¹² *Id.*

¹³ *Id.*

¹⁴ *Id.*

¹⁵ *Id.*

However, all Chinese-origin disposable aluminum containers, pans, trays, and lids meeting the scope description are included in the scope regardless of the specification.¹⁶

The *Orders* note that disposable aluminum containers, pans, trays, and lids are classifiable under HTSUS subheading 7615.10.7125.¹⁷ “Further, merchandise that falls within the scope of this proceeding may also be entered into the United States under HTSUS subheadings 7612.90.1090, 7615.10.3015, 7615.10.3025, 7615.10.7130, 7615.10.7155, 7615.10.7180, 7615.10.9100, 8309.90.0000, 8309.90.0010, and 8309.90.0090. Although the HTSUS subheadings are provided for convenience and customs purposes, the written description of the scope of these *Orders* is dispositive.”¹⁸

Initiation

On March 6, 2026, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP’s Office of Trade, initiated investigations under EAPA as a result of an Allegation¹⁹ submitted by the U.S. Department of Commerce (Commerce or the *Alleger*) claiming evasion of AD and CVD duties by Clark Core.²⁰ Commerce alleged that Clark Core entered Chinese-origin disposable aluminum containers into the United States that were transshipped through Cambodia, falsely declared as Cambodian-origin merchandise, to evade the *Orders*.²¹ A more detailed description of the alleged evasion scheme and evidence the *Alleger* provided follows.

Description of the Alleged Transshipment Scheme

Commerce alleges that the Importer is evading the *Orders* by transshipping Chinese-origin disposable aluminum containers through Cambodia.²² In support of its allegation, Commerce provided data from CBP showing the Importer had [description and number] entries of covered merchandise from Cambodia before imposition of the *Orders*, and [number and description] from [names] in Cambodia and [number] entries from China after the imposition of the *Orders*.²³ Commerce also presented evidence of a relationship between [name], the reported Cambodian producer of disposable aluminum containers, and [name] a Chinese producer of aluminum containers and the [description] to the Importer.²⁴ The two companies [description] showing evidence of ownership ties between [names].²⁵

¹⁶ *Id.*

¹⁷ *Id.*

¹⁸ *Id.*

¹⁹ See Commerce’s letter, “Request for an Investigation under the Enforce and Protect Act: Clark Core Services, LLC.,” dated February 10, 2026 (Request for Investigation).

²⁰ See Initiation Memorandum.

²¹ *Id.*

²² See Request for Investigation at 1 and Exhibit 3.

²³ *Id.* at 4.

²⁴ *Id.*

²⁵ *Id.*

Commerce also presented trade data showing a substantial increase in Chinese exports of disposable aluminum containers from China to Cambodia from 2024 to 2025.²⁶ Commerce further asserted that economic data from the Commodity Research Unit, (a private market research firm) shows Cambodia does not appear have the facilities or aluminum rolling capacity to manufacture the covered merchandise,²⁷ and that publicly available information suggests that neither [names] produce disposable aluminum containers.

Initiation Assessment

Evasion is defined as the “entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.”²⁸ Under 19 C.F.R. § 165.15(b), CBP will initiate an EAPA investigation if it determines that, upon considering the allegation, as supported by evidence reasonably available to the allegor, “{t}he information provided in the allegation... reasonably suggests that the covered merchandise has been entered for consumption into the customs territory of the United States through evasion.”²⁹

In assessing the basis for this Request for Investigation, CBP finds that the information provided reasonably suggests that the Importer entered merchandise covered by the *Orders* into the customs territory of the United States through evasion. Specifically, the Request for Investigation indicates that the Importer ceased importing subject merchandise from China and began importing from Cambodia after the *Orders* were imposed and that there was a relationship between a Chinese producer of covered merchandise and the Cambodian exporters.³⁰ In CBP’s experience from previous EAPA investigations, a sudden shift in the source country for subject merchandise after imposition of AD and/or CVD orders when both the previous and new exporters are related is a strong indicator that transshipment is occurring. The Request for Investigation alleges that Cambodia does not have the capacity to produce disposable aluminum containers, according to the Commodity Research Unit a private market research firm, and that public information does not indicate that the Cambodian suppliers have produced covered merchandise.³¹ Further trade statistics from S&P Global show that there has been a dramatic increase of imports of aluminum containers into Cambodia between 2024 and 2025.³² This information, taken together, reasonably suggests that Chinese-origin disposable aluminum containers are being transshipped through Cambodia.

For these reasons, on March 6, 2026, CBP initiated an investigation under the authority of 19 U.S.C. § 1517(b)(1) for Clark Core’s imports of covered merchandise that are alleged to be

²⁶ *Id.*

²⁷ See www.crugroup.com/en/data/.

²⁸ See 19 U.S.C. § 1517(a)(5); see also 19 C.F.R. § 165.1 (setting forth the definition of “evasion”).

²⁹ See also 19 U.S.C. § 1517(b)(1).

³⁰ See Request for Investigation at 3-4.

³¹ *Id.* at 3-4 and Exhibit 3.

³² *Id.* at 4 and Exhibit 4.

entered for consumption into the customs territory of the United States through evasion.³³ While CP shall make a determination as to whether merchandise properly within the scope of the *Orders* was entered into the customs territory through evasion, the statute does not limit this determination to only the type of evasion for which the investigation was initiated.³⁴

CBP Form 28 Responses and Analysis

On March 13, 2026, CBP issued CBP Form 28 (CF-28) requests for information to Clark Core to determine country of origin of certain entries, requesting various information including production records, proof of payment, raw material purchases, and information to demonstrate how the raw materials consumed tie to the entry in question.³⁵

Specifically, CBP asked the following questions:

1. Please provide complete production records, translated in English, for the disposable aluminum containers, pans, trays and lids (disposable aluminum containers) on the summary listed above. This information should be sent directly to me electronically by e-mail.
2. Please submit documentation, including the dated transportation documents, container load plans and commercial invoices from the manufacturer(s) of the raw materials, including the dated receipt with a signature of receipt for each of the raw materials used to manufacture disposable aluminum containers. In addition, please:
 - a. Provide foreign customs documentation for all raw materials, if imported.
 - b. Provide complete factory production records, including stamped timecards, work orders, as well as raw material and finished goods inventory documentation.
 - c. Describe all the equipment used in the production of disposable aluminum containers, including the production capacity, and provide a photo of each piece of equipment.
 - d. Please provide labeled photographs of the exterior and interior of the factory (including photographs showing the most important equipment used in production) where the merchandise was produced.
3. Please provide a manufacturing process flow chart, narrative, description, *etc.* In your answer, please demonstrate how the manufacturer tied the raw materials consumed to the entry in question for the documentation furnished for question #2. For example, this may be demonstrated *via* a purchase order or invoice number that appears on production documents.
4. Explain how long the factory has been open for business. Provide the name and address of the manufacturer. Also provide the name of the factory owner and all corporate officer

³³ See also 19 C.F.R. § 165.15.

³⁴ See 19 U.S.C. § 1517(c)(1)(A).

³⁵ See the CF-28 requests for entries [number]8163 (Entry 8163), [number]8961 (Entry 8961), [number]4341 (Entry 4341), and [number]6047 (Entry 6047) issued to Clark Core on March 13, 2026.

information. Is this company related to you, the importer? If there is a relationship, explain how this relationship affects the price paid or payable.

5. Provide entry transaction information including the original commercial invoice(s), proof of payment(s), CF7501, contract, purchase order, country of origin documentation, and all bills of lading (master bills of lading) (including through bills of lading). The proof of payment should tie the invoice(s) to the manufacturer, and if invoice(s) are paid in bulk processing, then provide supporting schedules noting the specific invoices and itemized in bulk payment requests from manufacturer.
6. Provide names of all forwarding agents, subcontractors, and intermediaries involved and their contact information.
7. In the event CBP wishes to clarify any of the above answers with the importer, please provide a public-facing email address so that we may do so.

Clark Core's CF-28 responses were due on April 12, 2026. Clark Core requested an extension and submitted timely CF-28 responses on April 23, 2026.³⁶ Clark Core provided a narrative response to the CF-28s and exhibits, which included [name] business information, [name] factory information and photos, bill of materials for raw materials, information regarding [name] Packaging's reported supplier of aluminum foil, and CBP entry documents from Clark Core.³⁷ Clark Core's CF-28 response corroborated certain elements of the Allegation,³⁸ namely that Clark Core's Cambodian supplier of disposable aluminum containers, [name], was founded in September 2024 and that the contact email on [name] certificate of incorporation is the same URL as a Chinese producer of disposable aluminum containers, [name].³⁹ The CF-28 response shows that [name] Director is a Chinese national, who listed a Chinese office address, and that the company is one hundred percent Chinese owned.⁴⁰ [name], the reported supplier of raw materials to [name] is also a Chinese company.⁴¹ Further, the owner of the factory leased by [name] is a Chinese national.⁴²

Clark Core's CF-28 response failed to include any of the requested information that would demonstrate production in Cambodia of disposable aluminum containers. The CF-28 response did not include stamped timecards, descriptions of equipment used in production, a production process flow chart, description(s) of how raw materials consumed tied to requested documentation, or proof of payment.

³⁶ See Clark Core Services, LLC Response to CF-28 Request for Information for Entries 8163, 4341, 6047, and 8961, dated April 23, 2026 (Clark Core CF-28 Response).

³⁷ *Id.*

³⁸ See Request for Information at Exhibit 2.

³⁹ *Id.* at 2 and Exhibit 1.

⁴⁰ *Id.* at Exhibit 1.w.

⁴¹ *Id.* at Exhibit 4.

⁴² *Id.*

Interim Measures

Not later than 90 calendar days after initiating an investigation under EAPA, CBP will decide based on the record evidence if there is reasonable suspicion that such merchandise covered by the *Orders* were entered into the United States through evasion. CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading entered merchandise covered by an AD and/or CVD order into the customs territory of the United States by a materially false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security.⁴³ If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24.⁴⁴ As explained below, CBP is imposing interim measures against Clark Core because, based on the record evidence, there is reasonable suspicion that Clark Core entered covered merchandise into the customs territory of the United States through evasion by means of transshipment through Cambodia to avoid paying duties as per the *Orders*.

Enactment of Interim Measures

Based on the record evidence described above, CBP determines that reasonable suspicion exists that Clark Core imported disposable aluminum containers into the United States from China that was transshipped through Cambodia, which should have been subject to the *Orders*. Therefore, CBP is imposing interim measures pursuant to this investigation for Clark Core entries of covered merchandise. Specifically, in accordance with 19 U.S.C. § 1517(e)(1)-(3), CBP shall:

- (1) suspend the liquidation of each unliquidated entry of such covered merchandise that entered on or after March 6, 2026, the date of the initiation of the investigation;
- (2) pursuant to the Commissioner's authority under 19 U.S.C. § 1504(b), extend the period for liquidating each unliquidated entry of such covered merchandise that entered before the date of the initiation of the investigation on March 6, 2026; and
- (3) pursuant to the Commissioner's authority under 19 U.S.C. § 1623, take such additional measures as the Commissioner determines necessary to protect the revenue of the United States, including requiring a single transaction bond or additional security or the posting of a cash deposit with respect to such covered merchandise.⁴⁵

In addition, CBP will require live entry and reject any entry summaries that do not comply with live entry and require refile of entries that are within the entry summary rejection period. CBP may also evaluate Clark Core's continuous bonds to determine their sufficiency. Finally, CBP may pursue additional enforcement actions, as provided by law, consistent with 19 U.S.C. § 1517(h).

⁴³ See 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24.

⁴⁴ See 19 C.F.R. § 165.24(a).

⁴⁵ See also 19 C.F.R. § 165.24(b)(1)(i)-(iii).

Continuation of the Investigation

According to 19 C.F.R. § 165.15(d)(1), CBP will issue notification of its decision to initiate an investigation to all parties to the investigation no later than five business days after day 90 of the investigation, and the actual date of initiation will be specified therein. Based on the information described herein, TRLED has initiated an investigation concerning the evasion of the *Orders*. The information in the Allegation reasonably suggests that Clark Core entered covered merchandise for consumption into the customs territory of the United States through evasion, and thus, such covered merchandise should have been subject to the applicable AD and CVD duties on disposable aluminum containers from China. If, at the end of the investigation, CBP determines that substantial evidence of evasion exists, CBP will take appropriate measures to protect the revenue under 19 U.S.C. § 1517(d).

Any future submissions or factual information that you submit to CBP pursuant to this EAPA investigation must be made electronically using EAPA's case management system (CMS) at <https://eapallegations.cbp.gov/>. Please provide a business confidential and public version to CBP and serve the public version on the parties to this investigation (*i.e.*, to the parties identified at the top of this notice). Public versions of administrative record documents will be available *via* the EAPA Portal at <https://eapallegations.cbp.gov/>.⁴⁶ Please note that CBP is requiring that all documents submitted *via* the CMS are made text searchable, especially if those documents are submitted as PDFs.

Should you have any questions regarding these investigations, please feel free to contact us at eapallegations@cbp.dhs.gov, Andrew.B.Huston@cbp.dhs.gov and Sean.M.Carey@cbp.dhs.gov. Please include "EAPA Consolidated Case 8294" in the subject line of your email. Additional information on these investigations, including the applicable statute and regulations, may be found on CBP's website at: <https://www.cbp.gov/trade/eapa>.

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

⁴⁶ See 19 C.F.R. § 165.4; see also 19 C.F.R. § 165.23(c); and 19 C.F.R. § 165.26.